CHAPTER VI

MISCELLANEOUS

Part I

AMENDMENT TO THE PROHIBITION OF BENAMI PROPERTY TRANSACTIONS ACT, 1988.

Amendment of Act 45 of 1988.

158. In the Prohibition of Benami Property Transactions Act, 1988, with effect from the 1st day of October, 2024,—

(*a*) in section 24,—

(*i*) after sub-section (2), the following sub-section shall be inserted, namely:—
"(2A) The *benamidar*, to whom a notice has been issued under sub-section (1), or the beneficial owner to whom a copy of such notice has been issued under sub-section (2), shall furnish the explanation or submissions, if any, within the period specified in the said notice or such period as may be extended by the Initiating Officer, not exceeding three months from the end of the month in which the said notice is issued.";

(*ii*) in sub-section (3), for the words "ninety days", the words "four months" shall be substituted;

(*iii*) in sub-section (4), for the words "ninety days", the words "four months" shall be substituted;

(*iv*) in sub-section (5), for the words "fifteen days from the date of the attachment", the words "one month from the end of the month in which the said order has been passed" shall be substituted;

(*b*) after section 55, the following section shall be inserted, namely:—

"55A. *Power to tender Immunity from prosecution.*— (1) The Initiating Officer may, with a view to obtaining the evidence of the *benamidar* or any other person as referred to in section 53, other than the beneficial owner, tender immunity from prosecution for any offence under the said section to the *benamidar* or such other person, with the previous sanction of the competent authority as referred to in section 55, on the condition that the *benamidar* or such other person makes a full and true disclosure of the whole circumstances relating to the *benami* transaction.

(2) The tender of immunity made to, and accepted by, the *benamidar* or such other person, shall, to the extent to which the immunity extends, render him immune from prosecution for the offence in respect of which the tender was made and from the imposition of any penalty under section 53.

(3) If it appears to the Initiating Officer that any person to whom immunity has been tendered under this section has not complied with the conditions subject to which the tender was made, or is wilfully concealing anything, or is giving false evidence, the Initiating Officer may record a finding to that effect, and with the previous sanction of the competent authority as referred to in section 55, withdraw the immunity tendered.

(4) Any person against whom the immunity tendered is withdrawn in accordance with sub-section (3), may be tried for the offence in respect of which the tender of immunity was made or for any other offence of which he appears to have committed in connection with the same transaction and shall also be liable to any penalty under this Act to which he would otherwise have been liable.".